

****February 7, 2024****

****Another Fine for GDPR Violation****

The National Supervisory Authority has completed an investigation into the company Account Exchange SRL and found that it violated the provisions of Article 5 paragraph (1) letter a) and Article 6 in relation to Article 83 paragraph (5) letter e) of Regulation (EU) 2016/679 (GDPR).

The operator was sanctioned with an administrative fine of 9,940.40 lei, equivalent to 2,000 EURO for the violation provided by Article 83 paragraph (5) letter e) of the GDPR and received a warning for the violation of the provisions of Article 5 paragraph (1) letter a) and Article 6 of the GDPR.

The investigation was initiated following a complaint indicating that the operator had used the personal data of several individuals to open current accounts in virtual currency on their behalf.

During the investigation, it was found that the operator processed the personal data (first and last name) of individuals from an administrative-territorial unit for the purpose of sending information regarding the opening of current accounts in their name, without consent or any other legal basis, thus violating the provisions of Article 5 paragraph (1) letter a) and Article 6 of the GDPR.

Additionally, during the investigation, it was noted that the operator did not provide the National Supervisory Authority with all the information and documents requested in the exercise of its competencies, which constitutes the violation provided by Article 83 paragraph (5) letter e) of the aforementioned legal act.

****Legal and Communication Department****

****N.S.A.****